



## CHAPTER 70.

An Act to amend and extend the provisions of the A.D. 1915.  
*Execution of Trusts (War Facilities) Act, 1914.*

[29th July 1915.]

**B**E it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. A tenant for life or a person having the powers of a tenant for life within the meaning of the Settled Land Acts, 1882 to 1890, shall be deemed to be a trustee within the meaning of the *Execution of Trusts (War Facilities) Act, 1914*, (hereinafter referred to as the principal Act) and accordingly may in pursuance of the principal Act by power of attorney delegate the exercise of all or any of his statutory powers under the Settled Land Acts, 1882 to 1890, and also all or any of the powers (if any) conferred upon him by the settlement in extension of such statutory powers: Provided that such delegation shall only be made to the trustees of the settlement for the purposes of the said Acts or to one or more of them.

Powers of  
tenant for  
life under  
Settled Land  
Acts.  
5 & 6 Geo. 5.  
c. 13.

2. For removing doubts it is hereby declared that an executor or administrator of a deceased person is, in relation to the administration of the estate of the deceased, a trustee within the meaning of the principal Act, and that he may appoint as his attorney his co-executor or co-administrator (if any), or any other person who would be capable of being appointed by a court of competent jurisdiction to be administrator with the will annexed or administrator of such deceased person, if no executor or administrator existed:

Executors  
and adminis-  
trators.

[CH. 70.] *Execution of Trusts (War Facilities)* [5 & 6 GEO. 5.]  
*Amendment Act, 1915.*

A.D. 1915. — Provided that for the purpose of this provision, a person shall not be deemed to be incapable of being appointed administrator by reason only that some other person would have, according to the law or practice of the court, a prior claim to be so appointed.

Revocation of powers of attorney. 3.—(1) In favour of any person dealing with the donee of a power of attorney made under the principal Act or this Act, any act done or instrument executed by the attorney shall, notwithstanding that the power has become revoked by the act of the donor of the power or by his death or otherwise, be as valid and effectual as if the donor of the power were alive and of sound mind and had himself done such act or executed such instrument, unless such person had actual notice of the revocation of the power or of the death or unsoundness of mind of the donor of the power before such act was done or deed executed.

(2) In favour of a person dealing with the attorney any such statutory declaration made by the attorney as is mentioned in subsection (4) of section one of the principal Act shall be conclusive evidence of the facts therein declared.

Powers of trustees in case of death of infant engaged on war service. 4. Where an infant who has been engaged on war service within the meaning of subsection (2) of section one of the principal Act, or who, having been abroad but not actually engaged on war service, has been for any reason connected with the present war unable to return from abroad to the United Kingdom, has died, all acts and instruments purporting to be done or executed on his behalf under the provisions of section sixty of the Settled Land Act, 1882, after the date of his death shall, in favour of any person who had not at the time the act was done or the instrument executed actual notice of the death, be as valid and effectual as if such infant were still living.

Persons reported missing presumed to be alive. 5. A trustee or infant to whom the principal Act or this Act applies shall, for the purposes of those Acts, be presumed to remain alive until definite news of his death has been received or such death has been presumed by a court of competent jurisdiction, and the fact that he is reported "missing" or "missing and believed to be killed" shall not be construed as giving to persons having knowledge of such report actual notice of his death, although in fact it has occurred.

[5 & 6 GEO. 5.] *Execution of Trusts (War Facilities)* [CH. 70.]  
*Amendment Act, 1915.*

6. This Act may be cited as the Execution of Trusts (War Facilities) Amendment Act, 1915, and shall be construed as one with the principal Act; and this Act and the principal Act may be cited together as the Execution of Trusts (War Facilities) Acts, 1914 and 1915.

A.D. 1915.  
Short title  
and construction.

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